

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Magistrate Judge Michael J. Watanabe**

Civil Action No. 15-cv-01795-MJW-STV

ANGUS JOHN FORBES,

Plaintiff,

v.

MICHAEL DONNELLON and
A. SANDOVAL,

Defendants.

JUDGMENT

This matter was tried on September 25, 2017 through September 27, 2017, before a duly sworn jury of eight, Magistrate Judge Michael J. Watanabe presiding.

After the presentation of the Plaintiff's case, the court heard statements and arguments of counsel on Defendants' oral motion for judgment as a matter of law pursuant to Fed. R. Civ. P.

50. It is

ORDERED that Defendants' oral motion for judgment as a matter of law pursuant to Fed. R. Civ. P. 50 is DENIED.

The trial proceeded to conclusion and the jury rendered its Verdict Form as follows:

Mr. Forbes, the Plaintiff, did not prove by a preponderance of the evidence that Deputy Donnellon or Deputy Sandoval violated Mr. Forbes' Fourth Amendment rights by unlawfully arresting Mr. Forbes.

Mr. Forbes, the Plaintiff, did not prove by a preponderance of the evidence that Deputy Donnellon or Deputy Sandoval violated Mr. Forbes' Fourth Amendment rights by using excessive force during the arrest of Mr. Forbes.

Mr. Forbes, the Plaintiff, did not prove by a preponderance of the evidence that Deputy Donnellon or Deputy Sandoval committed willful and wanton negligence.

Mr. Forbes, the Plaintiff, did not prove by a preponderance of the evidence that Deputy Donnellon committed outrageous conduct.

ACCORDINGLY, IT IS ORDERED that, pursuant to Fed. R. Civ. P. 58(a), final judgment is hereby entered in favor of Defendants, Michael Donnellon and A. Sandoval, and against Plaintiff, Angus John Forbes. It is

FURTHER ORDERED that Defendants, Michael Donnellon and A. Sandoval, shall have their costs by the filing of a Bill of Costs with the Clerk of this Court within fourteen days of the entry of judgment, pursuant to Fed. R. Civ. P.54(d)(1) and D.C.COLO.LCivR 54.1. It is

FURTHER ORDERED that Plaintiff's Complaint and this civil action are
DISMISSED WITH PREJUDICE.

Dated at Denver, Colorado, September 27, 2017.

FOR THE COURT:
JEFFREY P. COLWELL, CLERK

s/Stacy Libid
Stacy Libid, Deputy Clerk